

**UNITED STATES OF AMERICA
BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., et al

Respondents.

FMC Docket No. 20-14

**MOTION OF NONPARTIES DIRECT CHASSISLINK, INC., FLEXIVAN LEASING,
LLC, AND INTERPOOL, INC. D/B/A TRAC INTERMODAL
FOR ENTRY OF AMENDED ORDER OF CONFIDENTIALITY**

Nonparties Direct ChassisLink, Inc.; FlexiVan Leasing, LLC; and Interpool, Inc. d/b/a TRAC Intermodal (collectively, the “Intermodal Equipment Providers” or “IEPs”), respectfully move for entry of an amended order of confidentiality that fully protects their interests as recipients of subpoenas from Complainant, Intermodal Motor Carriers Conference of the American Trucking Associations, Inc. (“IMCC”), that call for the production of highly sensitive commercial and competitive information that would be of great value to an IMCC affiliate, the North American Chassis Pool Cooperative (“NACPC”), and to other competitors of the IEPs. NACPC directly competes with the IEPs and seeks to become manager of, and an enthusiastic participant in, the gray chassis pools that are the subject of this proceeding.¹

¹ See, e.g., <https://www.ttnews.com/articles/nacpc-gets-approval-run-chassis-pool-georgia-south-carolina-ports> (detailing NACPC’s prior efforts to create and manage new gray pool operations at ports in Georgia and South Carolina); <https://www.nacpc.org/about/> (outlining “NACPC’s mission [t]o establish an effective chassis supply utility that will be implemented on a national basis” and the “important objective” of NACPC “to preserve the ‘gray pool’ low-cost chassis pool model.”).

The IEPs negotiated for these protections with IMCC’s counsel, but IMCC refused to agree to them, instead submitting joint stipulation of the parties for entry of an amended order that made no reference to its failure to include provisions that the IEPs had expressly requested.² That Order was entered May 24, 2021 as a stipulated order. With regrets that Your Honor’s time is being further taken on the matter, the IEPs respectfully request that the current order be amended as set out in the redline attached hereto as Attachment A. (A clean copy is also attached as Attachment B.) The IEPs as third parties desire these additional protections beyond what the parties have agreed to because, unlike the Respondents who have largely if not entirely exited the chassis leasing business, the IEPs compete directly with NACPC, which would have access to some of the IEPs’ confidential material under the current order. The IEPs also propose some amendments to make the order more workable and efficient, especially as to third parties.

The IEPs’ response to IMCC’s motion to compel production under the subpoenas, filed May 21, 2021 (Dkt No. 47), submits that it should be denied on grounds of relevance, need, and burden. It also noted that IMCC had refused to agree to a provision in the proposed Amended Order of Confidentiality the parties were negotiating that would have prevented any of the IEPs’ confidential information from being turned over to any NACPC personnel. *See* IEP Opp., at 4-5. IMCC instead proposed, and then filed for approval, an order that allows information that is designated as confidential (“tier 1”), rather than the more restrictive tier of outside counsel eyes only (OCEO) confidential (“tier 2”), to be disclosed to “any officer, manager, Board Member, or employee of either Party.” *See* Jt. Motion, App. A, ¶¶ 6(b), 8. IMCC’s submission came less than

² The IEPs have agreed not to pursue certain procedural protections they sought from the parties, accepting their explanations that they would burden their litigation of the proceedings. The remaining issues are of significance to the IEPs, however, and make the operative order more complete and protective for all involved.

a week after IMCC amended its bylaws to allow NACPC's President to serve on the IMCC Board, a role in which he would be able to see this information. *See* IEP Opp. at 4-5.

Under the current order, which was submitted after IMCC refused the IEPs' request for an amendment on this point, information designated "confidential" includes "information of a nonpublic nature that a Party reasonably and in good faith believes to be commercially, competitively, or personally sensitive, or proprietary in nature," *see* Jt. Motion, App. A, ¶ 1(c), and NACPC's President would have access to this information. The only way to avoid NACPC's President from gaining access to such "commercially, competitively ... sensitive" information under the current order would be for the IEPs to code such materials with the OCEO designation, but such information may not meet the heightened definition for OCEO treatment. Seeking full protection could therefore be viewed as inconsistent with the Order as currently written.

IMCC's counsel has suggested that in raising this argument the IEPs seek to "impugn both IMCC's motives for seeking to compel the requested discovery and the integrity of the parties' counsel and others who will be bound by the Stipulation and Amended Order of Confidentiality." IMCC's Motion for Leave to File Reply in Support of its Motion to Compel Discovery, Dkt No. 49, at 1, (filed May 24, 2021). That is of course not the IEPs' intent; their purpose is only to reduce the likelihood that their sensitive confidential information will be disclosed to an important competitor and cause them competitive harm. Confidentiality orders are important and necessary tools, but not foolproof, and once information is turned over there is a risk of even unintentional and inadvertent disclosure. Of course, the issue would not have arisen had IMCC agreed to the IEPs' proposed Confidentiality Order that would protect *all* of their Confidential Information from disclosure to NACPC. And it would not have been brought into such sharp focus had NACPC's President not been recently added to the IMCC Board where he now, under the current order, has

access to tier 1 Confidential Information produced in the proceeding that he otherwise would not have had.³

The IEPs therefore believe it is essential that the Confidentiality Order governing their discovery include an express provision that NACPC and any of its current or former owners, shareholders, members, employees, officers, directors, or affiliates shall not have access to any IEP Confidential Information in this proceeding. Paragraph 8 of the IEPs' proposed revised Amended Order of Confidentiality, presented with this Response as Attachments A (redline) and B (clean) so provides, and the IEPs respectfully request that it be adopted.

The revised order that the IEPs are submitting addresses several other key points as well. IMCC has refused a legitimate protection sought by the IEPs under which they would be notified if their confidential information were used in a deposition, so that they can designate those portions of the deposition as to confidentiality. *See* Attachment A, ¶ 21. The IEPs seek to add a sentence to the end of ¶ 21, which sets out the procedures for designating portions of depositions as confidential, that

Where the Producing Party is not present at the deposition, any party using Confidential Information at a deposition shall provide the deposition transcript to the Producing Party as soon as it is available, and that Producing Party will be afforded the same ten day period after receipt [as is provided parties] to provide notice of designating the testimony as Confidential Information.

IMCC has not stated why it refused to add a provision along these lines to the confidentiality order it submitted for adoption. The parties will of course be present at any deposition where their confidential information might be used or disclosed, but that is not at all

³ IMCC does not deny that NACPC's President would have access to this information under the current order, and that he would not have such access under the IEPs' proposed order. Nor does IMCC deny that NACPC's President was only very recently added to the IMCC Board, and that if he had not been he would not have access to this IEP information even under the current order.

certain to be the case for the IEPs as third parties. IMCC has not explained why notice should not be provided to the IEPs (or any Producing Party not present at a deposition) to allow them to protect their rights, rather than forcing them into some much less efficient method of attempting to protect their information.

IMCC has rejected several other provisions that the IEPs sought in the order, also providing no reason for doing so other than that they had accepted some of the IEPs' proposals and were rejecting others. In some cases, the IEPs' suggestions were merely to address drafting errors and to provide clarifications. IMCC has declined to add the following:

1. A definition of "Receiving Party" on page 2 of the Order, even though "Receiving Party" is used as a defined term nine times in the Order.
2. An edit to ¶2 to make clear that confidentiality designations can be used to protect the competitive or privacy interests of the Producing Party's clients or an individual Party, choosing instead to offer language that is not even grammatical.
3. Language to ¶¶ 5 and 12 making clear that in addition to Confidential Information itself material derived from it (defined as Proceeding Material) cannot be used outside of the proceeding and must be used or destroyed after the proceeding ends.
4. Language in ¶19 protecting extracts as well as summaries and compilations of Confidential Information. IMCC's refusal to agree to this standard protection is particularly baffling given that the definition of Confidential Information in the Order includes "any information copied or extracted therefrom [and] all copies, excerpts, summaries, or compilations thereof," and there is no logical reason to cover extracts as well as summaries or compilations in one part of the order but not in another. Also in ¶19, IMCC has refused to remove the words "to be used in this Proceeding" from the description of Confidential Information required to be marked

in accordance with the Order. Since all Confidential Information is to be used only in the proceeding, the addition of the surplusage may create an inference that some use outside the proceeding might be contemplated, and that the material need not be marked if so. Both would be a violation of the Order, and there is no reason to be unclear on the matter.

5. An alternative designator in ¶20 for Confidential Information in ESI productions, which is consistent with best practices and elective in any event.

Attached to this Response is a redline that shows the changes the IEPs seek to the Order submitted with the Joint Motion, along with a clean version.

WHEREFORE, the IEPs request that Your Honor enter an Amended Order of Confidentiality in the form of Attachment B that includes the revisions shown on Attachment A.

DATED: May 27, 2021

Respectfully submitted,

/s/ John Longstreth

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Intermodal*

CERTIFICATE OF SERVICE

I certify that, on May 27, 2021, a true and current copy of the foregoing Motion of Direct ChassisLink, Inc.; FlexiVan Leasing, LLC; and Interpool, Inc. d/b/a TRAC Intermodal for Entry of an Amended Order of Confidentiality was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel for Complainant and counsel for the Respondents:

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DATED: May 27, 2021

/s/ John Longstreth

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INTERMODAL MOTOR CARRIERS CONFERENCE,
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INTEGRATED SHIPPING SERVICES,

Respondents.

STIPULATION & AMENDED ORDER OF CONFIDENTIALITY

WHEREAS, the above-captioned Federal Maritime Commission proceeding (“Proceeding”) is likely to involve production of trade secrets, valuable commercial information, personal information, business and financial proprietary information, disclosure of which and use for any purpose other than in this Proceeding would cause specific prejudice or harm, such as annoyance, embarrassment, oppression, or undue burden or expense;

IT IS HEREBY STIPULATED AND AGREED, in good faith, by the undersigned counsel for the Parties that the following Order of Confidentiality shall be applicable to this Proceeding and shall govern all hard copy and electronic information, documents, and materials produced or disclosed in relation to this Proceeding that include “Confidential Information”

(defined below), including any information copied or extracted therefrom; all copies, excerpts, summaries, or compilations thereof; and testimony, conversations, or presentations by Parties or their counsel that include Confidential Information. These materials shall be referred to hereinafter as “Proceeding Material.” A person (including a Party or any person that is not a Party) that produces or discloses such information, documents, or materials in this Proceeding shall be referred to hereinafter as a “Producing Party.” Any Party to this Proceeding who receives Proceeding Material shall be referred to hereinafter as “Receiving Party.”

Definition of Confidential Information

1. Each Producing Party shall have the right to designate information or Proceeding Material it produces as “Confidential” when it reveals or reflects:

- a. unpublished business, financial, research or marketing data, methods or plans, internal emails, memos, trade secrets, customer information, customer negotiations or operational or technical information;
- b. private or confidential personal information;
- c. other information of a nonpublic nature that a Party reasonably and in good faith believes to be commercially, competitively, or personally sensitive, or proprietary in nature entitled to protection under 46 CFR §502.141(j)(1) of the Rules of Practice and Procedure, or
- d. information that is not publicly-known, that is not in the public domain, or that was previously disclosed to the Receiving Party in violation of a known obligation to maintain confidentiality or restrict disclosure.

Definition of Outside Counsel Eyes Only Information

2. Each Producing Party shall have the right to designate information or Proceeding Material it produces as Outside Counsel Eyes Only (“Confidential OCEO”) when it qualifies as “Confidential” as defined above and whose disclosure to anyone other than outside counsel has a substantial probability of jeopardizing the Producing Party’s competitive business interests or the competitive or privacy interests of the Producing Party’s clients or an individual Party in this Proceeding.

3. Information or Proceeding Material designated as “Confidential” or “Confidential OCEO” shall be referred to hereinafter as "Confidential Information."

General Provisions

4. All Producing Parties designating Proceeding Material as Confidential and/or Confidential OCEO shall have a bona fide need for confidential treatment of information including trade secret or other confidential research, development, or commercial information pursuant to 46 CFR § 502.141(j)(1)(vii).

5. Proceeding Material, including Confidential Information disclosed by a Producing Party, shall be used solely in this Proceeding, and shall not be used by the Receiving Party for any business, commercial, competitive, personal, or other purpose.

6. The distribution and dissemination of any information designated as Confidential is limited to the following persons:

- a. counsel and co-counsel of record for any Party in this Proceeding including necessary paralegal, secretarial, and clerical personnel assisting counsel;
- b. any officer, manager, Board Member, or employee of either Party who may be consulted regarding this Proceeding;

- c. consultants or experts who are not employed by, or otherwise affiliated with, a Party in this Proceeding, and who are retained by a Party or its counsel to assist in the preparation of discovery, and/or this Proceeding;
- d. vendors retained by any of the Parties for the purpose of assisting with discovery, litigation support personnel, stenographers, and clerical employees whose duties and responsibilities require access to such materials; and
- e. Judge Wirth, the Federal Maritime Commission staff and personnel of the Commission.

7. The distribution and dissemination of any information designated Confidential OCEO is limited to the following persons:

- a. outside counsel and outside co-counsel of record for any Party in this Proceeding including necessary paralegal, secretarial, and clerical personnel assisting counsel;
- b. consultants or experts who are not employed by, or otherwise affiliated with, a Party in this Proceeding, and who are retained by a Party or its counsel to assist in the preparation of discovery, and/or this Proceeding;
- c. vendors retained by any of the Parties for the purpose of assisting with discovery, litigation support personnel, stenographers, and clerical employees whose duties and responsibilities require access to such materials; and
- d. Judge Wirth, the Federal Maritime Commission staff and personnel of the Commission.

~~8. Under no circumstances shall Proceeding Material designated as Confidential OCEO be shared with a Party's officer, manager, Board Member, employee, associational~~

~~members of a Party, or be shared with a known competitor (including, without limitation, officers, Board Members, managers, employees, or affiliates) of a Producing Party.~~

8. Notwithstanding any provisions herein to the contrary, Confidential Information shall not be disclosed or distributed to the North American Chassis Pool Cooperative (“NACPC”) or any of its current or former owners, shareholders, members, employees, officers, directors, or affiliates.

9. All persons authorized to receive and view Confidential Information shall take reasonable steps to secure any Confidential Information against unauthorized or inadvertent disclosure, and shall limit access to Confidential Information to those persons identified above in Paragraphs 6 or 7.

10. Persons identified in Paragraphs 6(c), (d) and 7(b), (c) shall read, agree to the terms of this Order of Confidentiality, and sign a Certification form annexed at Appendix A.

11. A Party which learns that, by inadvertence or otherwise, it has disclosed Confidential Information in breach of this Order of Confidentiality, shall promptly: (a) notify the ALJ and the Producing Party of the unauthorized disclosures, (b) use its best efforts to retrieve all copies of the disclosed Confidential Information, (c) inform those to whom unauthorized disclosures were made of all the terms of this Order of Confidentiality, and (d) request such person or persons to execute the Certification form annexed at Appendix A. Thereafter, the Party shall take necessary steps to prevent further disclosures in breach of any of the provisions of this Order of Confidentiality.

12. The Parties shall either destroy all Proceeding Material, including material designated Confidential Information, or return them to the original Producing Party at the

Producing Party's expense within forty-five (45) days of the final conclusion of this Proceeding either by settlement or final judgment, including exhaustion of all appeals.

13. Unless otherwise ordered or agreed to by a Producing Party with respect to that Producing Party's Proceeding Material, this Order shall remain in force after the final conclusion of this Proceeding by settlement or final judgment not subject to further appeal for a period of two years.

Privileged and Protected Material

14. The Producing Parties preserve any and all privileges and exemptions including but not limited to attorney-client privilege and work product privilege, which apply to any and all Proceeding Material.

15. Inadvertent disclosure shall not be deemed as a waiver of any privilege or exemption in accordance with the provisions on inadvertent disclosure in the Federal Rules of Civil Procedure.

16. Within forty-eight (48) hours of the receipt of a written notice from a Producing Party claiming inadvertent disclosure of privileged material, the Receiving Party shall return immediately any Proceeding Material deemed privileged by such letter, and the Receiving Party shall also delete and/or destroy any copies of such privileged or protected materials inadvertently produced by the Producing Party identified in such letter, subject to and without waiving the Receiving Party's rights to challenge the disclosures as inadvertent or the designation as confidential or privileged in accordance with the provisions on inadvertent disclosure in the Federal Rules of Civil Procedure.

Use of Confidential Information in Commission Hearings

17. Confidential Information disclosed to the Commission and ALJ in papers including exhibits, shall be labeled in accordance with 46 CFR §502.5.

18. The provisions of this Order of Confidentiality shall govern the Proceeding, including discovery, and shall not affect the conduct of the ALJ. The ALJ shall order an appropriate procedure for the use of the Confidential Information at or during the course of the Proceeding pursuant to 46 CFR §502.141(j)(1).

Designating Protected Material

19. Documents containing Confidential Information as defined in Paragraphs 1, 2, and 3 shall be marked with the word “CONFIDENTIAL” or “CONFIDENTIAL OCEO” on each page of that document that contains such information. Parties shall take reasonable steps to ensure that copies of such documents marked “Confidential” or “Confidential OCEO,” and any extracts, summaries, and compilations therefrom ~~to be used in this Proceeding~~, shall also be so marked.

20. Where a Producing Party produces Proceeding Material in electronic form, it may make the confidentiality designation by a letter which identifies the Bates Numbers of the electronic documents or which adequately describes the electronic documents, which comprise Confidential Information. Electronic files and documents produced in native format may be marked by using “CONFIDENTIAL” or “CONFIDENTIAL OCEO” in the file names or on placeholders in the Producing Party’s document production.

21. Depositions may be designated as Confidential Information by (i) stating orally on the record that the information is Confidential Information on the day the testimony is given, or (ii) sending written notice designating testimony as Confidential Information within ten (10) days after receipt of the official deposition transcript or deposition copy. Unless

otherwise agreed by the Producing Party, a transcript shall be treated as Confidential OCEO until the expiration of the ten-day period. Where the Producing Party is not present at a deposition, any party using Confidential Information at the deposition shall provide the deposition transcript to the Producing Party as soon as it is available, and that Producing Party will be afforded the same ten day period after receipt to provide notice of designating the testimony as Confidential Information.

22. Any Producing Party that designates information or items for protection under this Order of Confidentiality must take care to limit any such designation to specific material that qualifies.

23. Once the Receiving Party has notice that the Producing Party has designated Proceeding Material as Confidential Information, the Receiving Party shall treat the designated materials as Confidential Information in accordance with this Order of Confidentiality regardless of how much time has passed since the Confidential Information was first disclosed or produced.

Challenging Confidential Designations

24. Any Party may challenge a designation of “Confidential” or “Confidential OCEO” at any time that is consistent with the Commission’s Scheduling Order.

25. The Party challenging the designation must object with particularity and give a complete explanation by letter to the Producing Party’s Counsel.

26. If the challenging Party and the Producing Party are unable to resolve the challenge, then the Producing Party may move the ALJ for a protective order or the objecting party Counsel may move the ALJ to challenge the designation. The Proceeding Material,

however, shall continue to be deemed Confidential Information until the ALJ rules on any such motion.

27. If a Producing Party fails to seek a protective order to uphold its designation, any disputed Proceeding Material will lose its Confidential or Confidential OCEO designation thirty (30) days after the date of the letter referred to in Paragraph 25.

Reservation of Rights

28. The ALJ shall retain jurisdiction of the Parties, even after termination of this Proceeding, regarding any dispute between them on the improper use of Confidential Information disclosed under protection of this Order of Confidentiality.

29. Disclosure of Confidential Information Pursuant to Legal Process. If Confidential Information in the possession of the Receiving Party is subpoenaed or sought pursuant to discovery or other legal process, or is ordered to be disclosed by the Commission, the Party to whom the request has been made or an order directed shall promptly give written notice of such event to the Producing Party. No Party shall disclose another Producing Party's Confidential Information pursuant to such process without first giving that Producing Party notice for an opportunity to seek an order governing disclosure of the requested information. The Producing Party shall have the sole burden of defending against such request.

| DATED: May 27~~1~~, 2021

APPENDIX A

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INTEGRATED SHIPPING SERVICES,

Respondents.

DOCKET NO. 20-14

**CERTIFICATION TO BE BOUND BY STIPULATION
AND ORDER OF CONFIDENTIALITY**

I, _____ state that

1. My current home address is
2. My present occupation and/or job description is
3. My present employer is
4. The principal address of my employer is
5. I have carefully read and understand the provisions of the Stipulation and Order of Confidentiality executed by the Parties in the above-referenced Proceeding, and I will comply with all provisions of the Stipulation and Order of Confidentiality.

6. I will hold in confidence and not disclose to anyone not qualified under Paragraphs 6 or 7 of the Stipulation and Order of Confidentiality any documents and/or information designated Confidential Information.
7. I will limit use of Confidential Information disclosed to me solely for the purposes of this Proceeding.
8. At the conclusion of the above-referenced Proceeding, I will return all Confidential Information, including any summaries, abstracts, and indices thereof, that come into my possession or destroy all such Confidential Information.

I declare under penalty of perjury that the forgoing is true and correct.

DATE:

Signature

Printed Name

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STIPULATION & AMENDED ORDER OF CONFIDENTIALITY

WHEREAS, the above-captioned Federal Maritime Commission proceeding (“Proceeding”) is likely to involve production of trade secrets, valuable commercial information, personal information, business and financial proprietary information, disclosure of which and use for any purpose other than in this Proceeding would cause specific prejudice or harm, such as annoyance, embarrassment, oppression, or undue burden or expense;

IT IS HEREBY STIPULATED AND AGREED, in good faith, by the undersigned counsel for the Parties that the following Order of Confidentiality shall be applicable to this Proceeding and shall govern all hard copy and electronic information, documents, and materials produced or disclosed in relation to this Proceeding that include “Confidential Information”

(defined below), including any information copied or extracted therefrom; all copies, excerpts, summaries, or compilations thereof; and testimony, conversations, or presentations by Parties or their counsel that include Confidential Information. These materials shall be referred to hereinafter as “Proceeding Material.” A person (including a Party or any person that is not a Party) that produces or discloses such information, documents, or materials in this Proceeding shall be referred to hereinafter as a “Producing Party.” Any Party to this Proceeding who receives Proceeding Material shall be referred to hereinafter as “Receiving Party.”

Definition of Confidential Information

1. Each Producing Party shall have the right to designate information or Proceeding Material it produces as “Confidential” when it reveals or reflects:

- a. unpublished business, financial, research or marketing data, methods or plans, internal emails, memos, trade secrets, customer information, customer negotiations or operational or technical information;
- b. private or confidential personal information;
- c. other information of a nonpublic nature that a Party reasonably and in good faith believes to be commercially, competitively, or personally sensitive, or proprietary in nature entitled to protection under 46 CFR §502.141(j)(1) of the Rules of Practice and Procedure, or
- d. information that is not publicly-known, that is not in the public domain, or that was previously disclosed to the Receiving Party in violation of a known obligation to maintain confidentiality or restrict disclosure.

Definition of Outside Counsel Eyes Only Information

2. Each Producing Party shall have the right to designate information or Proceeding Material it produces as Outside Counsel Eyes Only (“Confidential OCEO”) when it qualifies as “Confidential” as defined above and whose disclosure to anyone other than outside counsel has a substantial probability of jeopardizing the Producing Party’s competitive business interests or the competitive or privacy interests of the Producing Party’s clients or an individual Party in this Proceeding.

3. Information or Proceeding Material designated as “Confidential” or “Confidential OCEO” shall be referred to hereinafter as "Confidential Information."

General Provisions

4. All Producing Parties designating Proceeding Material as Confidential and/or Confidential OCEO shall have a bona fide need for confidential treatment of information including trade secret or other confidential research, development, or commercial information pursuant to 46 CFR § 502.141(j)(1)(vii).

5. Proceeding Material, including Confidential Information disclosed by a Producing Party, shall be used solely in this Proceeding, and shall not be used by the Receiving Party for any business, commercial, competitive, personal, or other purpose.

6. The distribution and dissemination of any information designated as Confidential is limited to the following persons:

- a. counsel and co-counsel of record for any Party in this Proceeding including necessary paralegal, secretarial, and clerical personnel assisting counsel;
- b. any officer, manager, Board Member, or employee of either Party who may be consulted regarding this Proceeding;

- c. consultants or experts who are not employed by, or otherwise affiliated with, a Party in this Proceeding, and who are retained by a Party or its counsel to assist in the preparation of discovery, and/or this Proceeding;
- d. vendors retained by any of the Parties for the purpose of assisting with discovery, litigation support personnel, stenographers, and clerical employees whose duties and responsibilities require access to such materials; and
- e. Judge Wirth, the Federal Maritime Commission staff and personnel of the Commission.

7. The distribution and dissemination of any information designated Confidential OCEO is limited to the following persons:

- a. outside counsel and outside co-counsel of record for any Party in this Proceeding including necessary paralegal, secretarial, and clerical personnel assisting counsel;
- b. consultants or experts who are not employed by, or otherwise affiliated with, a Party in this Proceeding, and who are retained by a Party or its counsel to assist in the preparation of discovery, and/or this Proceeding;
- c. vendors retained by any of the Parties for the purpose of assisting with discovery, litigation support personnel, stenographers, and clerical employees whose duties and responsibilities require access to such materials; and
- d. Judge Wirth, the Federal Maritime Commission staff and personnel of the Commission.

8. Notwithstanding any provisions herein to the contrary, Confidential Information shall not be disclosed or distributed to the North American Chassis Pool Cooperative

(“NACPC”) or any of its current or former owners, shareholders, members, employees, officers, directors, or affiliates.

9. All persons authorized to receive and view Confidential Information shall take reasonable steps to secure any Confidential Information against unauthorized or inadvertent disclosure, and shall limit access to Confidential Information to those persons identified above in Paragraphs 6 or 7.

10. Persons identified in Paragraphs 6(c), (d) and 7(b), (c) shall read, agree to the terms of this Order of Confidentiality, and sign a Certification form annexed at Appendix A.

11. A Party which learns that, by inadvertence or otherwise, it has disclosed Confidential Information in breach of this Order of Confidentiality, shall promptly: (a) notify the ALJ and the Producing Party of the unauthorized disclosures, (b) use its best efforts to retrieve all copies of the disclosed Confidential Information, (c) inform those to whom unauthorized disclosures were made of all the terms of this Order of Confidentiality, and (d) request such person or persons to execute the Certification form annexed at Appendix A. Thereafter, the Party shall take necessary steps to prevent further disclosures in breach of any of the provisions of this Order of Confidentiality.

12. The Parties shall either destroy all Proceeding Material, including material designated Confidential Information, or return them to the original Producing Party at the Producing Party’s expense within forty-five (45) days of the final conclusion of this Proceeding either by settlement or final judgment, including exhaustion of all appeals.

13. Unless otherwise ordered or agreed to by a Producing Party with respect to that Producing Party’s Proceeding Material, this Order shall remain in force after the final conclusion

of this Proceeding by settlement or final judgment not subject to further appeal for a period of two years.

Privileged and Protected Material

14. The Producing Parties preserve any and all privileges and exemptions including but not limited to attorney-client privilege and work product privilege, which apply to any and all Proceeding Material.

15. Inadvertent disclosure shall not be deemed as a waiver of any privilege or exemption in accordance with the provisions on inadvertent disclosure in the Federal Rules of Civil Procedure.

16. Within forty-eight (48) hours of the receipt of a written notice from a Producing Party claiming inadvertent disclosure of privileged material, the Receiving Party shall return immediately any Proceeding Material deemed privileged by such letter, and the Receiving Party shall also delete and/or destroy any copies of such privileged or protected materials inadvertently produced by the Producing Party identified in such letter, subject to and without waiving the Receiving Party's rights to challenge the disclosures as inadvertent or the designation as confidential or privileged in accordance with the provisions on inadvertent disclosure in the Federal Rules of Civil Procedure.

Use of Confidential Information in Commission Hearings

17. Confidential Information disclosed to the Commission and ALJ in papers including exhibits, shall be labeled in accordance with 46 CFR §502.5.

18. The provisions of this Order of Confidentiality shall govern the Proceeding, including discovery, and shall not affect the conduct of the ALJ. The ALJ shall order an

appropriate procedure for the use of the Confidential Information at or during the course of the Proceeding pursuant to 46 CFR §502.141(j)(1).

Designating Protected Material

19. Documents containing Confidential Information as defined in Paragraphs 1, 2, and 3 shall be marked with the word “CONFIDENTIAL” or “CONFIDENTIAL OCEO” on each page of that document that contains such information. Parties shall take reasonable steps to ensure that copies of such documents marked “Confidential” or “Confidential OCEO,” and any extracts, summaries, and compilations therefrom, shall also be so marked.

20. Where a Producing Party produces Proceeding Material in electronic form, it may make the confidentiality designation by a letter which identifies the Bates Numbers of the electronic documents or which adequately describes the electronic documents, which comprise Confidential Information. Electronic files and documents produced in native format may be marked by using “CONFIDENTIAL” or “CONFIDENTIAL OCEO” in the file names or on placeholders in the Producing Party’s document production.

21. Depositions may be designated as Confidential Information by (i) stating orally on the record that the information is Confidential Information on the day the testimony is given, or (ii) sending written notice designating testimony as Confidential Information within ten (10) days after receipt of the official deposition transcript or deposition copy. Unless otherwise agreed by the Producing Party, a transcript shall be treated as Confidential OCEO until the expiration of the ten-day period. Where the Producing Party is not present at a deposition, any party using Confidential Information at the deposition shall provide the deposition transcript to the Producing Party as soon as it is available, and that Producing Party will be afforded the

same ten day period after receipt to provide notice of designating the testimony as Confidential Information.

22. Any Producing Party that designates information or items for protection under this Order of Confidentiality must take care to limit any such designation to specific material that qualifies.

23. Once the Receiving Party has notice that the Producing Party has designated Proceeding Material as Confidential Information, the Receiving Party shall treat the designated materials as Confidential Information in accordance with this Order of Confidentiality regardless of how much time has passed since the Confidential Information was first disclosed or produced.

Challenging Confidential Designations

24. Any Party may challenge a designation of “Confidential” or “Confidential OCEO” at any time that is consistent with the Commission’s Scheduling Order.

25. The Party challenging the designation must object with particularity and give a complete explanation by letter to the Producing Party’s Counsel.

26. If the challenging Party and the Producing Party are unable to resolve the challenge, then the Producing Party may move the ALJ for a protective order or the objecting party Counsel may move the ALJ to challenge the designation. The Proceeding Material, however, shall continue to be deemed Confidential Information until the ALJ rules on any such motion.

27. If a Producing Party fails to seek a protective order to uphold its designation, any disputed Proceeding Material will lose its Confidential or Confidential OCEO designation thirty (30) days after the date of the letter referred to in Paragraph 25.

Reservation of Rights

28. The ALJ shall retain jurisdiction of the Parties, even after termination of this Proceeding, regarding any dispute between them on the improper use of Confidential Information disclosed under protection of this Order of Confidentiality.

29. Disclosure of Confidential Information Pursuant to Legal Process. If Confidential Information in the possession of the Receiving Party is subpoenaed or sought pursuant to discovery or other legal process, or is ordered to be disclosed by the Commission, the Party to whom the request has been made or an order directed shall promptly give written notice of such event to the Producing Party. No Party shall disclose another Producing Party's Confidential Information pursuant to such process without first giving that Producing Party notice for an opportunity to seek an order governing disclosure of the requested information. The Producing Party shall have the sole burden of defending against such request.

DATED: May 27, 2021

APPENDIX A

**UNITED STATES OF AMERICA
BEFORE THE FEDERAL MARITIME COMMISSION**

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

DOCKET NO. 20-14

**CERTIFICATION TO BE BOUND BY STIPULATION
AND ORDER OF CONFIDENTIALITY**

I, _____ state that

1. My current home address is
2. My present occupation and/or job description is
3. My present employer is
4. The principal address of my employer is
5. I have carefully read and understand the provisions of the Stipulation and Order of Confidentiality executed by the Parties in the above-referenced Proceeding, and I will comply with all provisions of the Stipulation and Order of Confidentiality.

6. I will hold in confidence and not disclose to anyone not qualified under Paragraphs 6 or 7 of the Stipulation and Order of Confidentiality any documents and/or information designated Confidential Information.
7. I will limit use of Confidential Information disclosed to me solely for the purposes of this Proceeding.
8. At the conclusion of the above-referenced Proceeding, I will return all Confidential Information, including any summaries, abstracts, and indices thereof, that come into my possession or destroy all such Confidential Information.

I declare under penalty of perjury that the forgoing is true and correct.

DATE:

Signature

Printed Name